

Court No. - 29

Case :- WRIT - C No. - 1914 of 2016

Petitioner :- Abdul Kalaam

Respondent :- State Of U.P. & 3 Others

Counsel for Petitioner :- Pranab Kumar Ganguli

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble V.K. Shukla,J.

Hon'ble Mahesh Chandra Tripathi,J.

Earlier Abdul Kalaam is before this Court by preferring Writ Petition No. 48300 of 2015 (Abdul Kalaam Vs. State of U.P. & others) and his grievance has been that various amount has been deposited by him in the past and same has not been adjusted, this Court on 26.8.2015 has proceeded to pass an order giving liberty to petitioner to make representation and then respondent no. 4 of the aforementioned writ petition was asked to take appropriate decision in the matter.

Pursuant to the orders passed by this Court decision in question has been taken and petitioner has been informed that his bill in question has been modified pursuant to the application moved by him dated 10.9.2015 and petitioner is required to deposit a sum of Rs. 15065/-. Petitioner, at this juncture, is once again before this Court and is contending that amount paid by him in the past has not been adjusted by the respondent authorities.

Sri Mahboob Ahmad, learned counsel for the respondents, on the other hand, has contended that whatever amount is due, same has been assessed and further it has been contended that U.P. Electricity Supply Code 2005 is a self contained code and therein in case a consumer has any grievance against the action taken by the licensee, then he can raise his grievance before the Consumer Grievance Redressal Forum & Ombudsman under paragraph 7.10 of U.P. Electricity Supply Code 2005.

We have proceeded to examine the provisions of paragraph 7.10 of U.P. Electricity Supply Code 2005 and it clearly reflects that the licensee is under obligation to set up Consumer Grievance Redressal Forum in accordance with the UPERC (Consumer Grievance Redressal Forum & Ombudsman) Regulations, 2003, as amended from time to time. This much fact has also been informed that Consumer Grievance Redressal Forum is in order and functional.

Consequently, in the facts of the case, as accepted position, in the present case, is that petitioner is aggrieved by the action taken by the licensee in respect of revised bill, that has been so handed over to him, in view of this, as we cannot go into the disputed questions of fact, we leave it open to the petitioner to approach the Consumer Grievance Redressal Forum & Ombudsman under paragraph 7.10 of U.P. Electricity Supply Code 2005 for redressal of his grievances. Further, we make it clear that in case petitioner approach the aforementioned forum it is always expected that the matter in question would be dealt with, in accordance with law, on the basis of records available.

With these observations, writ petition stands ***disposed of***.

Order Date :- 28.1.2016

Shekhar